

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

21. YESENIA JUAREZ TORRES V. FRANCISCO TAPIA ESCALANTE

26FL0591

Petitioner filed a Request for Order (RFO) on June 24, 2026, seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 6, 2026, and a review hearing on September 17, 2026.

Petitioner filed an Application for Posting on June 24, 2026. The court granted the request the same day. There is no Proof of Service showing the posting was completed. There has been no service of the petition and summons on Respondent. As such, the court does not have jurisdiction to make orders.

Neither party appeared at the CCRC appointment.

The court drops the matter from calendar due to the lack of jurisdiction, lack of proper service of the RFO, and the failure to appear at CCRC.

TENTATIVE RULING #21: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF JURISDICTION, LACK OF PROPER SERVICE OF THE RFO, AND THE FAILURE TO APPEAR AT CCRC.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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22. KAYLA TRUJILLO V. GUNNER SEXTON

25FL0153

Petitioner filed a Request for Order (RFO) on June 16, 2026, seeking conduct orders for co-parenting. Respondent was served with some, but not all the required documents on June 18, 2026. Petitioner requests the court make orders regarding communication between the parties as well as orders regarding reimbursements and parameters for the right of first refusal.

Respondent filed a Responsive Declaration on August 20, 2026. It was served on August 23, 2026. Respondent does not raise the defect in service, therefore, the court deems it to be waived. Respondent does not believe the conduct orders are necessary.

Petitioner filed a Reply Declaration on August 27, 2026. It was served on August 28, 2026. Petitioner reiterates the request for conduct orders.

The court has read and considered the filings as outlined above. The court finds that most, if not all, of the requested orders are already standing orders of the court. The court admonishes both parties to reflect on their behaviors. The court notes the Respect Guidelines that the court adopted as its orders on August 21, 2025. The court reiterates those orders.

Respect Guidelines:

1. Both parents shall exert every effort to maintain free access and unhampered contact between the children and the other parent and shall foster a feeling of affection between them and the other parent. Neither parent shall do anything to estrange children from the other parent, nor impair the natural development of their love and respect for the other parent.
2. Each parent shall respect the other's right to privacy during his or her parenting time with the children.
3. Neither parent shall make disparaging remarks about the other in the children's presence or within earshot.
4. Neither parent shall make disparaging remarks about extended family, relatives, friends, or significant others in children's presence or within earshot.